

- 9.10 **Compliance with Laws.** Plan and Provider shall comply with all laws applicable to their obligations under this Agreement.

*The undersigned have executed this Agreement as of the date shown below.*

**RADIANTCARE RADIATION ONCOLOGY,  
LLC**

**BY:**  
Signature

Print or Typed Name

Title

Date Signed

Tax ID #:

Whose mailing address is:

4525 3rd Ave S.E Suite 100  
Lacey, WA 98523

**PREMERAFirst, INC.**

**BY:**

Signature

Print or Typed Name

Title

Date Signed

Whose mailing address is:

PO Box 327

Seattle, WA 98111-0327

**EFFECTIVE DATE: February 1, 2010**

**AMENDMENT TO  
PREMERAFirst PROVIDER AGREEMENT**

**RADIANTCARE RADIATION ONCOLOGY, LLC**

The Agreement entered into by and between PREMERAFirst, Inc. ("Intermediary") and RadiantCare Radiation Oncology, LLC ("Provider") is hereby-amended effective February 1, 2010, as follows:

1. **PART 6, Section 6.02, ("Termination"):** this section is deleted in its entirety and replaced with the following:
  - A. **Termination Without Cause.** This Agreement may be terminated at any time without cause by either party upon ninety (90) days prior written notice, provided that neither party may terminate this Agreement without cause during the initial term of 36 months.
  - B. **Termination For Cause.** If either party fails to comply with or perform when due any material term or condition of this Agreement, the other party shall notify the defaulting party in writing of the default. The notice shall specify in reasonable detail the specific nature of the default. If the defaulting party fails to cure the default within 30 days, the non-defaulting party may declare by written notice that this Agreement shall be terminated following receipt of the written notice.
  - C. **Termination By Plan.** In the event that the Provider fails to meet Plan credentialing standards, or in the event that Plan determines, in its sole discretion, that the continuation of this Agreement may have a significant adverse effect on the health or well-being of the Enrollee, Plan may terminate this Agreement immediately effective upon the delivery of written notice.
  - D. **Termination for Material Adverse Change(s).** If Provider objects to a material adverse change(s) subject to Section 7.01A, Provider must give Plan written notice to terminate the contract within thirty (30) days of the notice. Termination shall be effective at the end of the notice period unless, within sixty-five (65) days of the date of the original notice of change, Plan gives written notice to Provider that it will not implement the material adverse change(s) to which Provider objected.

The effective date of this amendment is February 1, 2010. All other terms and conditions of the Agreement remain unchanged, except as specified in this or any other amendment to the Agreement.

**RADIANTCARE RADIATION ONCOLOGY,  
LLC**

**PREMERAFirst, INC.**

BY: Lani Jo Fullerton  
Signature

Lani Jo Fullerton  
Print or Typed Name

Practice Administrator  
Title

12/17/09  
Date Signed

91-2018691  
Tax ID #:

BY: \_\_\_\_\_  
Signature

Rich Maturi  
Print or Typed Name

SVP, Health Care Delivery Systems  
Title

\_\_\_\_\_  
Date Signed

- Provider fee schedule services (RBRVS based services) will be supplemented with the Ingenix Comprehensive Listing of RBRVS Values.

3. Provider's fee schedule effective February 1, 2012:

- RBRVS based services will be allowed at a \$60.50 conversion factor on 2008 RBRVS, unadjusted by GPCI, using the transitioned practice expense RVUs and application of the work RVU budget neutrality adjustor; using both non-facility practice expense and facility practice expense units determined by the setting in which the service occurs.
- All other services will be allowed at the Plan Fee Schedule.
- Provider fee schedule services (RBRVS based services) will be supplemented with the Ingenix Comprehensive Listing of RBRVS Values.

B. Upon Provider request at the initiation of this Agreement, Plan will furnish Provider with the Plan Fee Schedule associated with high volume services as determined by Plan.

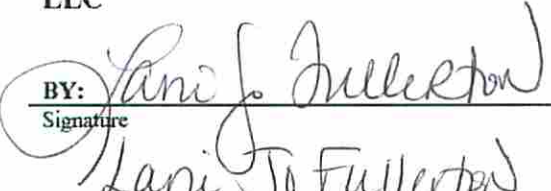
C. Plan will provide Provider notice of any change in the Plan Fee Schedule pursuant to Section 7.01 of the Agreement.

This Compensation Exhibit supersedes any previous terms that set forth Provider payment for Covered Services provided to Enrollees. The PremeraFirst Provider Agreement shall remain unmodified and in full force and effect, except as specified in this Exhibit or any other amendment to the Agreement.

This Exhibit will remain in force through January 31, 2013 (Initial Term) and will continue after this Initial Term unless terminated by either party pursuant to Section 6 of the Agreement.

IN WITNESS WHEREOF, the parties hereto have executed and delivered this Compensation Exhibit in duplicate original.

**RADIANTCARE RADIATION ONCOLOGY,  
LLC**

BY: 

Signature

Print or Typed Name

Title

Date Signed

Tax ID #:

**PREMERAFirst, INC.**

BY: \_\_\_\_\_

Signature

Print or Typed Name

Title

Date Signed